TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
September 28, 2020
MINUTES

Attachment 1--Staff Report

Present: Barry Wolff, Chair, Julian Hopkins, Beth Santilli, Elliott Barrow, Stephen Wood, Stephen Duke.
Absent: Megan Stevens.
Staff: Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Duke moved for approval of the agenda. Mr. Wood seconded the motion. All in favor.

B. Approval of Minutes

Mr. Duke moved for approval of the minutes. Mr. Wood seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wolff continued with the agenda.

E. Explanation of Procedures

Mr. Wolff explained the meeting procedures and administered the oath to those speaking.

F. Administration of Oath

Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-24-2020, 647 Fox Pond, TMS# 532-10-00-307, Request for relief from the strict application of Section 156.225 to allow the removal of a 27" Pecan tree.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. David Bell, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Hopkins moved for approval of the request with no mitigation required. Motion failed due to the lack of a second.*

- *Mr. Duke moved for approval of the request with 25% mitigation required. Ms. Santilli seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Hopkins, Mr. Duke, and Mr. Wood in favor; Mr. Barrow opposed.*

2. **Case V-25-2020, 3705 Tower Dr., TMS# 614-01-00-099, Request for relief from the strict application of Sections 156.007 Definitions, Building Line, to allow front and rear setbacks along length and side yard setbacks along depth. Ordinance requires front and rear yards along the depth (shorter side) and sides along the length (longer).**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Charles Cain, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed the pubic comment.

- *Mr. Barrow moved for approval based on the findings that there are extraordinary conditions that do not apply to other properties and because of the existing conditions it would not allow utilization of the property, and it would not be a detriment to the surrounding neighborhood. Mr. Duke seconded the motion. All in favor.*

3. **Case V-26-2020, 1312 Penshell Place, TMS# 560-06-00-223, Request for relief from the strict application of Section 156.107 Modifications**

of Yard Regulations to allow installation of a propane tank less than 3-feet from side yard property line. The ordinance allows a propane tank to encroach four feet into a required yard but no closer than 3 feet from any property line.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Hilton Smith reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Hopkins moved for approval based on the findings as presented in application and staff report and testimony given at the meeting. Mr. Duke seconded the motion. All in favor.*

4. **Case V-27-2020, 100 Ann Edwards Lane, Town Hall Athletic Field, TMS# 517-00-00-010, Request for relief from the strict application of 156.318 (Q)(5) to allow 70-foot tall lighting on the athletic field. The ordinance limits the height to 60-feet and further limits the height to 40-feet within 50-feet of residentially zoned properties outside the district. CORRESPONDENCE**

- Mr. Robertson and reviewed staff comments with the Board (attachment 1).

- Mr. Wolff asked that the correspondence received is read into the record.

- Mr. Billy Connell, representative for the owner, and Mr. Steve Gergick, Recreation Director, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comments.

- *Mr. Barrow moved for denial of the request based on the testimony received and the application as it has not met the criteria for approval. Motion failed due to the lack of a second.*

- *Mr. Wood moved for approval of the request with the condition that the new poles are no higher than the existing light poles. Mr. Barrow seconded the motion.*

Mr. Wood withdrew his motion; Mr. Barrow withdrew his second.

- *Mr. Wood moved for deferral of the request for more information regarding the lighting. Mr. Barrow seconded the motion. All in favor.*

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:36 pm.

Submitted by,
L. Lynes
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